

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA

C.A. (PHC) 176/2011

P.H.C. Kurunegala Case No: HCR/80/2009

M.C. Kuliypitiya Case No: 50077/09

Lilipita Mudiyanseilage Kanthi
Athuruwala
Giriulla

Respondents - Petitioner-Appellant

Vs

Hon. Attorney General
Attorney General's Department
Colombo -12

Respondents- Respondents

C.A. (PHC) 176/2011 P.H.C. Kurunegala Case No: HCR/80/2009
M.C. Kuliypitiya Case No: 50077/09

Before : K.T. Chitrasiri, J. &

W.M.M. Malinie Gunaratne, J.

Counsel : Rakitha Abeysinghe Respondent-Petitioner-
Appellant.

Sarath Wickramasinghe SASA for the 2nd ,3rd & 4th
Respondents.

Argued &

Decided on : 31.10.2014

K.T. Chitrasiri, J.

This is an appeal seeking to set aside the orders dated 20.09.2011 and 02.09.2009 of the learned High Court Judge and of the learned Magistrate respectively. The 1st respondent namely, the Divisional Secretary made an application on 25.03.2009 under the State Land (Recovery of Possession) Act No: 7 of 1979 as amended, to recover possession of the land referred to in the said application dated 25.03.2009. Having held an inquiry on the aforesaid application, learned Magistrate made order on 09.09.2002 to eject the appellant from the land in question. Basically, the reason for the aforesaid decision was that the appellant had failed to show cause, why he should not be evicted from the land in question. Being aggrieved by the aforesaid decision, the appellant filed a revision application in the High Court.

When it was taken up before the learned High Court Judge once again the appellant did not present any ground in order to succeed in his revision application filed in the High Court. In this instance too, nothing is submitted to show that the appellant is having any permit or written authority issued by the State to be in occupation of the land in dispute.

In the cases of Muhandiram Vs. Chairman JEDB (1992 (1) SLR 110) and Nirmal Paper Converters (PVT) Ltd. Vs. Sri Lanka Ports Authority (1993 (1) SLR 219), it was held that unless a valid permit or written authority is produced by the person who claims to be in possession of State Land, then he is not entitled to be in occupation of that land. Relying upon the aforesaid decisions, we decide that this appeal has no merit. Accordingly, this appeal is dismissed.

Appeal dismissed.

JUDGE OF THE COURT OF APPEAL

W.M.M. Malinie Gunaratne,J.

I agree.

JUDGE OF THE COURT OF APPEAL

Jmr/-